

(b) to the South Staffordshire district, eight hundred and fifty-three thousand pounds (£853,000),

and the Central Valuation Board Apportionment Certificate issued before the passing of this Act shall be of no effect as respects those districts.

Short title and  
citation.

3. This Act may be cited as the Coal Industry Act, 1951, and the Coal Industry Acts, 1946 and 1949, and this Act may be cited together as the Coal Industry Acts, 1946 to 1951.

## CHAPTER 42

An Act to make provision for the appointment and functions of a Minister of Materials.

[3rd July 1951.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Appointment  
and functions  
of Minister  
of Materials.

1.—(1) It shall be lawful for His Majesty to appoint a Minister of Materials (in this Act referred to as "the Minister") who (without prejudice to the exercise by him of any other functions conferred on him) shall be charged with the exercise of such functions relating to raw and other materials as may be conferred on him.

(2) Without prejudice to any other power to confer functions on the Minister, the enactments specified in the Schedule to this Act shall apply to the Minister as they apply to the Board of Trade or the Minister of Supply.

(3) References in the foregoing provisions of this section to the conferring of functions shall be construed as references to—

(a) the conferring of functions by Order in Council under the Ministers of the Crown (Transfer of Functions) Act, 1946,

(b) the conferring of functions by or under any other enactment, and

(c) the assigning (otherwise than in pursuance of an enactment) of functions such as are exercisable by a Minister of the Crown without powers conferred or authority given by or under an enactment.

9 & 10 Geo. 6.  
c. 31.

2. The Minister shall take the oath of allegiance and the official oath, and the Promissory Oaths Act, 1868, shall have effect as if the name of the Minister were included in the First Part of the Schedule to that Act.

Oath of allegiance and official oath.  
31 & 32 Vict. c. 72.

3.—(1) The Minister may appoint a Parliamentary Secretary, and such other secretaries, officers and servants as he may with the consent of the Treasury determine.

Appointment of officers, remuneration and expenses.

(2) There shall be paid—

(a) to the Minister, an annual salary not exceeding five thousand pounds;

(b) to any Parliamentary Secretary appointed by the Minister, and to any other secretaries, officers and servants appointed by the Minister, such salaries or remuneration as the Treasury may determine,

and for the purposes of section six of the Ministers of the Crown Act, 1937 (which makes provision against duplicate salaries) any salary payable under this subsection to the Minister or to any Parliamentary Secretary appointed by him shall be deemed to be a salary payable under that Act.

1 Edw. 8. &  
1 Geo. 6. c. 38.

(3) The salary of the Minister and his expenses (including any salaries or remuneration payable under paragraph (b) of the last foregoing subsection and any increase attributable to subsection (2) of section one of this Act in the sums payable out of moneys provided by Parliament under any of the Acts specified in the Schedule to this Act) shall be defrayed out of moneys so provided.

4. A person holding office as Minister of Materials, or as Parliamentary Secretary to the Ministry, shall not thereby be rendered incapable of being elected as a member of the Commons House of Parliament, or of sitting or voting as such a member.

Capacity to sit in House of Commons.

5.—(1) The Minister shall for all purposes be a corporation sole, and shall have an official seal, which shall be authenticated by the signature of the Minister or of a secretary to the Ministry or of any person authorised by the Minister to act in that behalf.

Seal, style and acts of Minister.

(2) The seal of the Minister shall be officially and judicially noticed, and every document purporting to be an instrument made or issued by the Minister and to be sealed with the seal of the Minister authenticated in the manner provided by this section, or to be signed by a secretary to the Ministry or any person authorised as aforesaid, shall be received in evidence and be deemed to be so made or issued without further proof, unless the contrary is shown.

(3) A certificate signed by the Minister that any instrument purporting to be made or issued by him was so made or issued shall be conclusive evidence of that fact.

31 & 32 Vict.  
c. 37.

(4) The Documentary Evidence Act, 1868, shall apply to the Minister as if his name were included in the first column of the Schedule to that Act, and as if he or a secretary to the Ministry or any person authorised by him to act on his behalf were mentioned in the second column of that Schedule, and as if the regulations referred to in that Act included any document issued by the Minister.

Short title.

6. This Act may be cited as the Ministry of Materials Act, 1951.

Sections 1 & 3.

## SCHEDULE

### ENACTMENTS APPLIED TO MINISTER

10 & 11 Geo. 6.  
c. 39.

Section one of the Statistics of Trade Act, 1947 (which enables certain Ministers to obtain statistical information from a person carrying on an undertaking).

10 & 11 Geo. 6.  
c. 40.

The Industrial Organisation and Development Act, 1947, except section ten thereof (which relates to the application of surplus moneys levied under the Defence (Encouragement of Exports) Regulations, 1940), section eleven thereof (which provides for grants to the Council of Industrial Design and to design centres) and section thirteen thereof (which makes provision for the exercise of the powers of the Board of Trade).

11 & 12 Geo. 6.  
c. 66.

Section ten of the Monopolies and Restrictive Practices (Inquiry and Control) Act, 1948 (which empowers certain Ministers to make orders where the Monopolies and Restrictive Practices Commission have made a report).

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## CHAPTER 43

### *Finance Act, 1951*

#### ARRANGEMENT OF SECTIONS

##### PART I

##### CUSTOMS, EXCISE AND PURCHASE TAX

##### *Customs and Excise (changes in rates etc.)*

##### Section .

1. Hydrocarbon oils, petrol substitutes and power methylated spirits.
2. Entertainments duty.
3. Three-year extension of key industry duty.
4. Reduction of match duties.
5. Amendment of excise duty on mechanical lighters.

##### *Amendments to give effect to agreements affecting Customs and Excise*

6. Valuation of goods for purpose of ad valorem duties.
7. Unesco agreement (blind welfare and news-reels).
8. Pakistan trade agreement.
9. Dried and crystallized figs.